

Court No. - 70

Case :- CRIMINAL MISC. ANTICIPATORY BAIL APPLICATION U/S 482
BNSS No. - 11926 of 2024

Applicant :- Shiv Kumar And 2 Others

Opposite Party :- State Of U.P. And 3 Others

Counsel for Applicant :- Fizah Andrea Haqq, Taniya Pandey

Counsel for Opposite Party :- G.A., Omvir Singh Rajpoot

Hon'ble Deepak Verma, J.

1. Heard Ms. Taniya Pandey, learned counsel for the applicant, Sri Omvir Singh Rajpoot, learned counsel for the informant, learned A.G.A. for the State and perused the record.

2. The instant anticipatory bail application has been moved by the applicant for enlarging him on anticipatory bail in Case Crime No 0310 of 2024, under Sections 191(2), 352, 115(2), 109, 74, 117(2) of B.N.S., 2023 and Section 7/8 of POCSO Act, 2012, Police Station Jawan, District Aligarh.

3. It is submitted by learned counsel for the applicant that applicant is innocent and has been falsely implicated in the present case due to ulterior motive; On account of old enmity, applicant has been falsely implicated in the present case. On perusal of statement of victim recorded U/s 181 and 183 BNSS, no offence under the alleged sections is made out against the applicants. Statement of victim and contents of FIR have various discrepancies. It is a case of false implication. Applicants have no previous criminal history. Two accused persons have been enlarged on bail. It is further submitted that the applicants are apprehensive of imminent arrest. In case, the applicants are released on bail, they would not misuse the liberty of bail and would co-operate with the investigation.

4. Learned A.G.A. has vehemently opposed the prayer for bail and has submitted that there is direct allegation against the applicants. As per medical report and statement of victim, prima facie, offence is made out against the applicants. Applicants are named in the FIR and there is specific allegation against the applicants. The applicant is not entitled for any indulgence by this Court. Hence, the anticipatory bail application of the applicants may be rejected.

5. The object of anticipatory bail is that a person should not be unnecessarily harassed or humiliated in order to satisfy personal

vendetta or grudge of complainant or any other person operating the things directly or from behind the curtains.

6. It is well settled that discretionary power conferred by the legislature on this Court cannot be put in a straitjacket formula but such discretionary power either grant or refusal of anticipatory bail has to be exercised carefully in appropriate cases with circumspection on the basis of the available material after evaluating the facts of the particular case and considering other relevant factors (nature and gravity of accusation, role attributed to accused, conduct of accused, criminal antecedents, possibility of the applicant to flee from justice, apprehension of tempering of the witnesses or threat to the complainant, impact of grant of anticipatory bail in investigation or society etc.) with meticulous precision maintaining balance between the conflicting interest, namely, sanctity of individual liberty and interest of society.

7. Without expressing any opinion on merits of the case and considering the submissions advanced, the nature and gravity of the accusation, I find no good ground for anticipatory bail to the applicants in the aforesaid case.

8. Accordingly, the anticipatory bail application is **rejected**.

Order Date :- 8.1.2025
Nitin Verma